



Subject Qualification: Degree of LLM, School of Law
Session: 2024/25
Examination Title: Artificial Intelligence and the Law
Course Code: LAW5226
Date: Tuesday, 29th April 2025
Time: 9:30

Instructions:

This is a seen exam. Your examination paper will be available for you to download on Monday, 28th April 2025. Submissions will only be accepted during the scheduled 24-hour examination period, from Tuesday, 29th April 2025 until Wednesday, 30th April 2025. Please note that late penalties apply immediately after the end of this period, on Wednesday, 30th April 2025 at 9:30.

Maximum word limit is **3,750 words**.

Answer **THREE** out of the following six questions.

CONTINUED OVERLEAF

1. The European Union has taken the lead in attempting to comprehensively regulate artificial intelligence through a risk-based approach, as set out in the EU AI Act. Critically evaluate this risk-based regulatory model. What are its main advantages and limitations?
2. Critically identify and discuss how regulators should respond to the challenges posed by free and open-source Generative AI models.
3. Drawing on the European Commission's guidance on prohibited AI practices under the AI Act and relevant theories of manipulation, critically evaluate the threshold for applying Article 5(1)(a). How do these thresholds shape the interpretation and practical applicability of the prohibition on subliminal and manipulative AI practices?
4. Critically assess if the EU AI Act may give rise to a 'Brussels Effect' again in the global regulation of artificial intelligence. Please compare and contrast the EU's regulatory approach with those adopted or proposed in other jurisdictions, such as the US, China, and UK.
5. The 'AI lifecycle' is increasingly recognised as a fundamental concept in AI governance and regulation, especially in relation to large and complex AI projects within organisations. From a regulatory perspective, how and to what extent does the theory of private interest regulation explain the role of the 'AI lifecycle' in AI governance and regulation?
6. Beyond regulatory considerations, the 'AI value chain' raises key ethical-legal questions concerning the role of end-users, who form the final link in the chain. In what ways can end-users actively contribute to or undermine effective AI governance? Illustrate your argument with real-world examples.

END OF EXAM PAPER